

		continues the December 12, 2024 status conference to <u>May 8, 2025 at 2:00 p.m.</u> in Department CX104. The Order to Show Cause re Dismissal scheduled for December 12, 2024 at 2:00 p.m. is vacated. Clerk to give notice.
7	Olivares v. Robinson Pharma, Inc. 2022-01256198-	<u>Status Conferences in <i>Olivares, et al. v. Robinson Pharma, Inc.</i>, Case No. 2022-01256198 and <i>Olivares, et al. v. Robinson Pharma, Inc.</i>, Case No. 2022-01267160</u> The court has reviewed the parties' joint status conference statement filed December 5, 2024 (ROA 91) in Case No. 2022-01256198, and based thereon continues the December 12, 2024 status conference to <u>May 8, 2025 at 2:00 p.m.</u> in Department CX104. Plaintiff Olivares states he intends to move to intervene in the <i>O'Neill</i> action. He has not done so. In the alternative, plaintiff Olivares asks the court in the status conference statement to consolidate his action with <i>O'Neill</i>. In the absence of a properly-noticed motion to consolidate, the court declines plaintiff Olivares's request for a consolidation order. Clerk to give notice.
8	Olivares v. Robinson Pharma, Inc. 2022-01267160	<u>Status Conferences in <i>Olivares, et al. v. Robinson Pharma, Inc.</i>, Case No. 2022-01256198 and <i>Olivares, et al. v. Robinson Pharma, Inc.</i>, Case No. 2022-01267160</u> The court has reviewed the parties' joint status conference statement filed December 5, 2024 (ROA 91) in Case No. 2022-01256198, and based thereon continues the December 12, 2024 status conference to <u>May 8, 2025 at 2:00 p.m.</u> in Department CX104. Plaintiff Olivares states he intends to move to intervene in the <i>O'Neill</i> action. He has not done so. In the alternative, plaintiff Olivares asks the court in the status conference statement to consolidate his action with <i>O'Neill</i>. In the absence of a properly-noticed motion to consolidate, the court declines plaintiff Olivares's request for a consolidation order. Clerk to give notice.
9	Huynh v. Robinson Pharma, Inc. 2024-01412009	<u>Status Conference in <i>Huynh v. Robinson Pharma, Inc.</i>, Case No. 2024-01412009</u> The court has reviewed the parties' joint status conference statement filed December 6, 2024 (ROA 28), and based thereon continues the December 12, 2024 status conference to <u>January 30, 2025 at 2:00 p.m.</u> in Department CX104. Defendant's request to stay this action pending completion of the settlement in <i>O'Neill v. Robinson Pharma, Inc.</i>, Case No. 2020-01176039, is denied without prejudice.

		The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
10	Stroj v. American Patriot Brands, Inc., et al. 2023-01326840	<u>Defendant Martin Brill’s Motion to Stay Civil Action Pending Resolution of Pending Criminal Action</u> <u>Defendants American Patriot Brands, Inc., Robert Mayer, Robert Y. Lee, Brian L. Pallas, Jim Anderson, Urban Pharms, LLC, DJ & S Property #1, LLC, TSL Distribution, LLC and Legion Accounting Services, Inc.’s Motion to Stay Civil Action Pending Resolution of Pending Criminal Action</u> Defendants Martin Brill, American Patriot Brands, Inc., Robert Mayer, Robert Y. Lee, Brian L. Pallas, Jim Anderson, Urban Pharms, LLC, DJ & S Property #1, LLC, TSL Distribution, LLC and Legion Accounting Services, Inc. (together, the “Moving Defendants,” and, without Brill, the “APB Defendants”) move to stay this case pending resolution of a pending criminal case against Brill and Lee. Defendant Levene, Neale, Bender, Yoo & Golubchik L.L.P. (“LNBYG”) opposes the motions. Plaintiff Robert J. Stroj does not oppose a stay of the entire action, but opposes a partial stay of the action (i.e., Stroj opposes a stay whereby the action would be stayed against the Moving Defendants but not against LNBYG). The court has read and considered all of the papers filed in support of and in opposition to the motion. For the following reasons, the motions to stay the entire civil action are granted. On July 30, 2024, the Orange County District Attorney’s Office filed a felony complaint against Brill and Lee, among others, charging them with eight felony counts of insurance fraud and one count of conspiracy to commit referral of clients for compensation arising from Brill and Lee’s alleged involvement with Southern California Injured Workers (SCIW). Chambers Decl. (ROA 621) Ex. A. Stroj’s first amended complaint in this action alleges improper conduct by Brill and LNBYG related to SCIW. First Amended Complaint (ROA 7) ¶ 133. Stroj incorporates the SCIW allegations into his civil conspiracy cause of action against all defendants, including Lee. <i>Id.</i> ¶ 155. State and federal cases acknowledge the “plight of a defendant in a criminal prosecution who must also defend against civil proceedings involving the same facts.” <i>People v. Coleman</i> (1975) 13 Cal.3d 867, 884. The “alleviation of tension between constitutional rights” is within the trial court’s discretion “in seeking to assure the sound administration of justice.” <i>Id.</i> at 885. “There may be cases where the requirement that a criminal defendant participate in a civil action, at peril of being denied some portion of his worldly goods, violates concepts of elementary fairness in view of the defendant’s position in an inter-related criminal prosecution. On the other hand, the fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation. The